

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #11	CCRB Case #: 201508114	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/25/2015 1:30 AM	Location of Incident: West 125th Street Exit (going south bound into Manhattan from Yonkers)	18 Mo. SOL 3/25/2017	Precinct: 26		
Date/Time CV Reported Fri, 09/25/2015 9:19 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/25/2015 9:19 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Blinn	04844	944368	HWY 01
2. POM Scott Rizzo	02824	939324	HWY 01

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Blinn	Abuse: PO Robert Blinn refused to provide his name and shield number to § 87(2)(b)	A . Unfounded
B . POM Scott Rizzo	Abuse: PO Scott Rizzo refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated

Case Summary

On September 25, 2015, at approximately 1:30 a.m., PO Robert Blinn and PO Scott Rizzo from the Highway 1 Command pulled over § 87(2)(b) at the West 125th Street exit ramp on the Henry Hudson Parkway, in Manhattan. PO Blinn and PO Rizzo allegedly refused to provide their names and shield numbers upon § 87(2)(b)'s request for that information (**Allegations A & B**). § 87(2)(b) was issued a summons for speeding regarding this incident (**see Board Review 6**).

There is no video footage for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**see Board Review 7**).

Civilian and Officer CCRB Histories

- This was the first CCRB complaint filed by § 87(2)(b) (**see Board Review 4**).
- PO Robert Blinn has been a member of the service for 8 years and there are no substantiated CCRB allegations against him.
- PO Scott Rizzo has been a member of the service for 10 years and there are no substantiated CCRB allegations against him

Findings and Recommendations

Allegation A- PO Robert Blinn refused to provide his name and shield number to § 87(2)(b)

Allegation B - PO Scott Rizzo refused to provide his name and shield number to § 87(2)(b)

It is undisputed that § 87(2)(b) was not initially compliant with PO Blinn's request for him to roll down all of the windows in the vehicle, and as a result, PO Blinn took § 87(2)(b)'s keys when he returned to his vehicle to write a summons for speeding. After PO Blinn wrote the summons, he approached the driver's side of § 87(2)(b)'s vehicle, while PO Rizzo approached the passenger side. As both officers started walking back towards the police vehicle, § 87(2)(b) asked PO Blinn for both officers' names and shield numbers. Both officers turned around when § 87(2)(b) asked the question, so § 87(2)(b) was sure that both officers could hear his question. PO Blinn was approximately three to four feet away from the front driver's side window when § 87(2)(b) asked the question. PO Rizzo was approximately ten to twelve feet away from the vehicle when § 87(2)(b) asked this question; near the rear passenger side bumper of § 87(2)(b)'s vehicle. PO Blinn told § 87(2)(b) that his name and shield number was on the summons, and then PO Blinn continued walking towards the police vehicle. PO Rizzo did not respond verbally to § 87(2)(b)'s question, but PO Rizzo smirked as he turned back around. PO Rizzo did not speak throughout the entire incident (**see Board**

Review 1). When § 87(2)(b) filed his complaint, he provided five of six numbers of PO Blinn’s tax identification number correctly and the command code.

PO Blinn stated that as he started walking back towards the police vehicle, § 87(2)(b) asked, “What’s your name?” PO Blinn was at the driver’s side rear bumper of § 87(2)(b)’s vehicle and responded, “All of my information is on the bottom of the summons, including my name.” § 87(2)(b) then responded, “Ok, thank you.” § 87(2)(b) did not ask PO Blinn for his shield number. PO Blinn did not hear § 87(2)(b) ask PO Rizzo for his name or shield number. PO Rizzo was standing in front of the police vehicle when § 87(2)(b) asked PO Blinn for his name (**see Board Review 2**).

PO Rizzo stated that he had no interaction with § 87(2)(b) and that the traffic stop was solely conducted by PO Blinn. There was a highway overpass directly above the location where § 87(2)(b) was stopped, which made it difficult for PO Rizzo to hear a conversation from the passenger side of the vehicle. The police vehicle was parked approximately ten feet behind § 87(2)(b)’s vehicle, and PO Rizzo did not hear any conversation between PO Blinn and § 87(2)(b) when PO Blinn handed § 87(2)(b) the summons. PO Rizzo did not hear § 87(2)(b) ask himself or PO Blinn for their names or shield numbers (**see Board Review 3**).

It is undisputed that PO Blinn informed § 87(2)(b) that information regarding PO Blinn’s identity was on the bottom of the summons he issued to § 87(2)(b). It is undisputed that § 87(2)(b) was able to provide identifying information for PO Blinn from what was on the summons. § 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unfounded**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date